

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX**

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DARNELL HOLMES,

Plaintiff,

-against-

**CITY OF NEW YORK, NEW YORK CITY POLICE
DEPARTMENT, POLICE OFFICER MARK
MOBAREK, DETECTIVE LAWRENCE BRAY, and
JOHN DOE POLICE OFFICERS ONE and TWO,**

Defendants.

Index No.

SUMMONS

Plaintiff designates Bronx
County as the place of trial.
The basis of venue is the
action arose in Bronx
County.

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TO THE ABOVE-NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED to answer the Verified Complaint in this action and to
serve a copy of your answer, or, if the complaint is not served with this summons, to serve a
notice of appearance on the Plaintiffs attorney within 20 days after the service of the summons,
exclusive of the day of service or within 30 days after the service is complete if this summons is
not personally delivered to you within the State of New York; and in case of your failure to
appear or answer, judgment will be taken against you by default for the relief demanded in the
notice set forth below and in the within Verified Complaint.

Dated: Maspeth, New York
October 27th, 2021

Raymond Elvis Gazer
Raymond Elvis Gazer, Esq.
Law Offices of Raymond Elvis Gazer
64-04 Hull Avenue
Maspeth, New York 11378
(917)848-0527

TO: GEORGIA M. PESTANA, ESQ.
Corporation Counsel of City Of New York 100 Church Street
New York, New York 10007

NEW YORK CITY POLICE DEPARTMENT
1 Police Plaza
New York, New York 10038

POLICE OFFICER MARK MOBAREK, Shield # 5668
42nd Precinct
New York City Police Department
1 Police Plaza
New York, New York 10038

DETECTIVE LAWRENCE BRAY, Shield # 2935
42nd Precinct Detective Squad
New York City Police Department
1 Police Plaza
New York, New York 10038

POLICE OFFICER JOHN DOE ONE
New York City Police Department
1 Police Plaza
New York, New York 10038

POLICE OFFICER JOHN DOE TWO
New York City Police Department
1 Police Plaza
New York, New York 10038

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**VERIFIED
COMPLAINT**

-----X
Plaintiff, by his attorney, RAYMOND ELVIS GAZER, ESQ., complaining of the
defendants, respectfully shows to this Court and alleges the following upon information and
belief:

1. That, at all times, the Plaintiff **DARNELL HOLMES** was and is a resident of
Bronx County, State of New York.
2. That, at all times, hereinafter mentioned, the defendant, **CITY OF NEW YORK**,
hereinafter referred to as “**CITY**,” was and still is a municipal corporation organized and
existing under and by virtue of the laws of the State of New York.
3. That, at all times, hereinafter mentioned the defendant, **NEW YORK CITY
POLICE DEPARTMENT**, hereinafter referred to as “**NYPD**” was and is an agency of the
defendant, **CITY**.
4. That, on and prior to October 28th, 2020, and at all times hereinafter mentioned
the defendant, **POLICE OFFICER MARK MOBAREK**, Shield # 5668, hereinafter referred
“**MOBAREK**” was and is a police officer employed by the defendant **NYPD**, assigned to the

42nd Precinct, and at all times herein was acting in such capacity as the agent, servant and employee of the **CITY** and **NYPD**.

5. That, on and prior to October 28th, 2020, and at all times hereinafter mentioned the defendant, **DETECTIVE LAWRENCE BRAY**, Shield # 2935, hereinafter referred “**BRAY**” was and is a police officer employed by the defendant **NYPD**, assigned to the 42nd Precinct Detective Squad, and at all times herein was acting in such capacity as the agent, servant and employee of the **CITY** and **NYPD**.

6. That, on and prior to October 28th, 2020, and at all times hereinafter mentioned the defendant, **POLICE OFFICER JOHN DOE ONE**, hereinafter referred to as “**JOHN DOE ONE**” was and is a police officer employed by the defendant **NYPD**, and at all times herein was acting in such capacity as the agent, servant and employee of the **CITY** and **NYPD**.

7. That, on and prior to October 28th, 2020, and at all times hereinafter mentioned the defendant, **POLICE OFFICER JOHN DOE TWO**, hereinafter referred to as “**JOHN DOE TWO**” was and is a police officer employed by the defendant **NYPD**, and at all times herein was acting in such capacity as the agent, servant and employee of the **CITY** and **NYPD**.

8. Upon information and belief, at all times hereinafter mentioned, and on October 28th, 2020, at approximately 4:00 p.m., several police officers including but not limited to **MOBAREK, BRAY, JOHN DOE ONE**, and **JOHN DOE TWO** were on duty and in the vicinity of East 163rd Street and Trinity Avenue in the Bronx.

9. Upon information and belief, at all times hereinafter mentioned, and on October 28th, 2020, at approximately 4:00 p.m., the above mentioned Police Officers were acting within the scope of their employment and under the direction of the **CITY** and **NYPD** as its agents, servants and/or employees.

10. That, on and prior to October 28th, 2020, **MOBAREK, BRAY, JOHN DOE ONE**, and **JOHN DOE TWO** were each individually hired, screened, tested, interviewed, trained, retrained, investigated, monitored and supervised by the **CITY** and **NYPD**.

11. That, on and prior to October 28th, 2020, in the vicinity of 163rd Street and Third Avenue in the Bronx, New York, pursuant to that request **DARNELL HOLMES** were individually and/or collectively were acting pursuant to and under the rules and regulations of the New York City Patrol Guidelines.

12. That, on October 28th, 2020, at approximately 4:00 p.m., Plaintiff **DARNELL HOLMES** was lawfully in the vicinity of 163rd Street and Third Avenue in the Bronx, New York.

13. That, at a time prior to October 28th, 2020, **DARNELL HOLMES** was asked by **BRAY** to assist in a police investigation of a shooting that occurred sometime prior thereto and instructed to contact **BRAY** any time that **DARNELL HOLMES** observed an individual whom **BRAY** suspected was involved in said shooting, hereinafter referred to "Subject."

14. That, on October 28th, 2020, in the vicinity of 163rd Street and Third Avenue in the Bronx, New York, pursuant to that request **DARNELL HOLMES** contacted **BRAY** via text message and informed him that the subject **BRAY** was looking for was present.

15. That, on October 28th, 2020, **BRAY** instructed **DARNELL HOLMES** via text message to get in his car with the subject whereupon **DARNELL HOLMES** did as requested.

16. That, on October 28th, 2020, in the vicinity of 163rd Street and Third Avenue in the Bronx, New York, **DARNELL HOLMES**, at the request of **BRAY**, was operating his motor vehicle with the subject whom **BRAY** was looking for in the passenger seat while surreptitiously

providing to **BRAY** via text message his location in an effort that **BRAY** and other police officers would be able to locate and apprehend Subject.

17. That, on October 28th, 2020, in the vicinity of East 166th Street and Trinity Avenue, **MOBAREK, BRAY, JOHN DOE ONE**, and **JOHN DOE TWO**, absent an arrest warrant, probable cause, reasonable cause or any legal justification, approached Plaintiff **DARNELL HOLMES** for no reason and summarily stopped, searched, grabbed, assaulted, battered, and detained him in an aggressive and excessive manner.

18. Upon information and belief **MOBAREK, BRAY, JOHN DOE ONE**, and **JOHN DOE TWO** knew or had reason to know that their actions lacked any legal justification in approaching, searching, seizing and arresting Plaintiff **DARNELL HOLMES** in that it was **DARNELL HOLMES**, himself, who led them to his location in order that they be able to apprehend Subject.

19. Upon information and belief, Plaintiff **DARNELL HOLMES** was subjected to a strip search while in the custody of defendants without any legal reason or justification.

20. That, Plaintiff **DARNELL HOLMES** was arraigned after his arrest and thereafter falsely and maliciously prosecuted with committing the crime of Criminal Possession of a Weapon in the Second Degree and other related crimes based upon false and incomplete information provided to the District Attorney by **CITY, NYPD, MOBAREK, BRAY, JOHN DOE ONE**, and **JOHN DOE TWO**.

21. Thereafter, Plaintiff **DARNELL HOLMES** remained incarcerated for over four month and was required to make numerous court appearances over an extended period of time until all charges against him were summarily dismissed by the District Attorney's Office on February 25th, 2021.

22. That, solely based upon his false arrest and malicious prosecution, the New York State Division of Corrections and Community Supervision lodged and executed a parole warrant against **DARNELL HOLMES**.

23. Plaintiff **DARNELL HOLMES** sustained physical and emotional pain and injuries as a result of this incident.

24. That within ninety days after the causes of actions accrued herein, and more than thirty days prior to the commencement of this action, the Plaintiff **DARNELL HOLMES** caused the notice of claim, in writing, sworn on behalf of the claimant, the Plaintiff herein, containing the statement of the name and place of residence of the claimants by the street and number and their attorney, and describing the time when the particular claim and circumstances under which the damages and injuries were sustained, the cause thereof, and so far as practical, the nature and extent of the injuries to be personally served upon the defendant **CITY**, their agents, servants and/or employees at the Law Department and/or Comptroller's Office.

25. This action was so commenced within one year and ninety days after said cause of action accrued herein, and for more than thirty days prior to the commencement of this action, defendant **CITY** neglected, refused and failed to make an adjustment of said claim, and said claim remains unadjusted and unpaid, although plaintiff herein has requested and demanded that the same be paid and adjusted.

26. That the defendants requested an oral examination pursuant to General Municipal Law Section 50-H and said request was complied with.

**AS AND FOR A FIRST CAUSE OF ACTION ON
BEHALF OF PLAINTIFF DARNELL HOLMES**

27. Plaintiff **DARNELL HOLMES** repeats, reiterates and realleges each and every allegation contained in paragraphs numbered 1 – 26 with the same force and effect as if fully set forth at length herein.

28. That, on or about October 28th, 2020, the Plaintiff **DARNELL HOLMES** was without just cause, probable cause or provocation, and with reckless, negligent and callous disregard for the truth, and without investigation, touched, grabbed, handcuffed, seized and arrested in an excessive manner and with excessive force by **CITY, NYPD, MOBAREK, BRAY, JOHN DOE ONE**, and **JOHN DOE TWO**, their agents, servants and/or employees.

29. That, on or about October 28th, 2020, the Plaintiff **DARNELL HOLMES**, while lawfully in the vicinity of East 166th Street and Trinity Avenue, County of Bronx, City and State of New York, was without just cause, probable cause or provocation, maliciously, intentionally and falsely accused by **CITY, NYPD, MOBAREK, BRAY, JOHN DOE ONE**, and **JOHN DOE TWO** of having committed the crime of Criminal Possession of a Weapon in the Second Degree and other related charges.

30. That, on or about October 28th, 2020, and upon arresting the Plaintiff **DARNELL HOLMES** and depriving him of his liberty, **CITY, NYPD, MOBAREK, BRAY, JOHN DOE ONE**, and **JOHN DOE TWO** took the Plaintiff **DARNELL HOLMES** to a police station in the County of Bronx and entered him on the records as under arrest.

31. That, on or about October 28th, 2020, the **CITY, NYPD, MOBAREK, BRAY, JOHN DOE ONE**, and **JOHN DOE TWO** further caused Plaintiff **DARNELL HOLMES** to have his fingerprints and photographs to be taken without his consent and in accordance with police procedures for the arrest of criminals and held him on various criminal charges at various

police stations, correctional facilities and at the Courthouse located at 215 East 161st Street, County of Bronx, City and State of New York.

32. That, on or about October 28th, 2020, Plaintiff **DARNELL HOLMES** was aware of his arrest and confinement, he did not consent to his arrest or confinement, and said confinement, seizure, arrest and detention was without legal justification.

33. That, at all times hereinafter mentioned, the actions of **CITY, NYPD, MOBAREK, BRAY, JOHN DOE ONE**, and **JOHN DOE TWO** as described above were carried out in a reckless, deliberate, willful, wanton, malicious and grossly negligent manner.

34. That by reason of the foregoing, Plaintiff **DARNELL HOLMES** has been damaged in an amount that exceeds the jurisdictional limits of all lower trial courts of this state.

**AS AND FOR A SECOND CAUSE OF ACTION
ON BEHALF OF PLAINTIFF DARNELL HOLMES**

35. Plaintiff **DARNELL HOLMES** repeats, reiterates and realleges each and every allegation contained in paragraphs numbered 1 - 34 with the same force and effect as if fully set forth at length herein.

36. That, on or about October 28th, 2020, a criminal complaint was issued by the **CITY, NYPD, MOBAREK, BRAY, JOHN DOE ONE**, and **JOHN DOE TWO**, their agents, servants and/or employees, without probable cause, reasonable cause or legal justification.

37. That, on or about October 28th, 2020, a criminal action against Plaintiff **DARNELL HOLMES** was commenced by **CITY, NYPD, MOBAREK, BRAY, JOHN DOE ONE**, and **JOHN DOE TWO**, their agents, servants and/or employees, without probable cause, reasonable cause or legal justification.

38. That solely as a result of the aforesaid, the Plaintiff **DARNELL HOLMES**' life was interfered with.

39. That the criminal action against Plaintiff **DARNELL HOLMES** was continued for an extended period of time by defendants with malice and bad faith.

40. That solely as a result of the false arrest, assault, battery, false imprisonment and malicious prosecution of the Plaintiff **DARNELL HOLMES**, he was deprived of his liberty for an extended period of time and was subjected to scorn, ridicule, embarrassment and was degraded in the esteem of the community both personally and professionally.

41. That, on or about February 25th, 2021, the criminal action against Plaintiff **DARNELL HOLMES** was terminated favorably by dismissal.

42. That the actions of **CITY, NYPD, MOBAREK, BRAY, JOHN DOE ONE**, and **JOHN DOE TWO**, as described above were carried out in a reckless, deliberate, willful, wanton, malicious and grossly negligent manner.

43. That, by reason of the foregoing, Plaintiff **DARNELL HOLMES** has been damaged in an amount that exceeds the jurisdictional limits of all lower trial courts of this state.

**AS AND FOR A THIRD CAUSE OF ACTION ON
BEHALF OF PLAINTIFF DARNELL HOLMES**

44. Plaintiff **DARNELL HOLMES** repeats, reiterates and realleges each and every allegation contained in paragraphs numbered 1 -43 with the same force and effect as if fully set forth at length herein.

45. That, on or about October 28th, 2020, and while in the custody of the defendants in the County of Bronx, City of New York, the Plaintiff **DARNELL HOLMES** was intentionally touched, pushed, assaulted, battered, violated, strip searched, humiliated, photographed and handcuffed by the **CITY, NYPD, MOBAREK, BRAY, JOHN DOE ONE**, and **JOHN DOE TWO**, who were acting within the scope of their employment and authority in such a manner as to knowingly cause injury to plaintiff.

46. That, on or about October 28th, 2020, **CITY, NYPD, MOBAREK, BRAY, JOHN DOE ONE**, and **JOHN DOE TWO**, their agents, servants and employees, acting as agents and on behalf of the **CITY, NYPD, MOBAREK, BRAY, JOHN DOE ONE**, and **JOHN DOE TWO**, within the scope of their employment, did intentionally, willfully and maliciously assault and batter the Plaintiff **DARNELL HOLMES** in that they have the real or apparent ability to cause imminent harmful and/or offensive bodily contact and intentionally did a violent and/or menacing act which threatened such contact to the Plaintiff **DARNELL HOLMES** and their act caused apprehension of such contact in the plaintiff, and in a hostile and/or offensive manner touched and beat the plaintiff and/or offensive bodily contact to the Plaintiff **DARNELL HOLMES** and caused such battery in and about his head, neck, back, body and limbs.

47. That, by reason of the aforesaid intentional assault and battery which was committed in an excessive manner and with excessive force and without legal justification or privilege by the defendants, their agents, servants and employees, who were acting within the scope of their employment and authority and without any probable or reasonable cause, Plaintiff **DARNELL HOLMES** suffered great and permanent bodily injury in and about his head, neck, back, body and limbs and was rendered sick, sore, lame and disabled, and suffered conscious pain and suffering, and that he was otherwise damaged.

48. That, as a result of the aforesaid assault and battery, the Plaintiff **DARNELL HOLMES** was caused to sustain serious, severe, painful and permanent bodily injuries so that he was rendered sick, sore, lame and disabled and so remains and was and will be compelled to seek medical aid and attention and incur expenses for same in an endeavor to cure himself of his said injuries and he was and will be prevented from attending his usual occupation and duties.

49. That, at all times hereinafter mentioned, the actions of **CITY, NYPD, MOBAREK, BRAY, JOHN DOE ONE**, and **JOHN DOE TWO** as described above were carried out in a reckless, deliberate, willful, wanton, malicious and grossly negligent manner.

50. That, by reason of the foregoing, Plaintiff **DARNELL HOLMES** has been damaged in an amount that exceeds the jurisdictional limits of all lower trial courts of this state.

**AS AND FOR A FOURTH CAUSE OF ACTION ON
BEHALF OF PLAINTIFF DARNELL HOLMES**

51. Plaintiff **DARNELL HOLMES** repeats, reiterates and realleges each and every allegation contained in paragraphs numbered 1-50 with the same force and effect as if fully set forth at length herein.

52. That the **CITY, NYPD**, their agents, servants and employees were negligent, careless and reckless in hiring, retaining, training, monitoring, retraining, supervising and promoting its employees including but not limited to **MOBAREK, BRAY, JOHN DOE ONE**, and **JOHN DOE TWO**, in that said police officers, as employees of **CITY** and **NYPD**, were not qualified to be hired or retained or promoted as police officers, lacked the experience, skill, training and ability to be employed, retained and utilized in the manner that each was employed by **CITY** and **NYPD**.

53. That the **CITY** and **NYPD** failed to exercise due care and caution in its hiring, retaining, training and/or promoting practices in that **CITY** and **NYPD** failed to adequately test, analyze test results, and/or investigate above mentioned police officers' backgrounds and performances.

54. That the **CITY** and **NYPD** failed to exercise due care and caution in its hiring, retaining, training and/or promoting practices in that **CITY** and **NYPD** failed to adequately

screen said police officers, failed to adequately monitor said police officers, and failed to adequately discipline said police officers when they violate Patrol Guidelines.

55. Defendant **CITY** and **NYPD** were also negligent in that prior to and at the time of the acts complained of herein, due to the prior history of the police officer defendants named herein, knew or should have known of the bad disposition of said defendants, or at the very least had knowledge of facts that would put a reasonably prudent employer on inquiry concerning their bad disposition and the fact that defendant police officers were not suitable to be hired and employed by the **CITY** and **NYPD** and that due to their lack of training, these officers should have had adequate supervision so that they would not arrest innocent individuals nor use excessive force during the arrest process.

56. That by reason of the above, the Plaintiff **DARNELL HOLMES** was injured in mind and body as he was arrested, prosecuted and rendered sick, sore, and damaged.

57. That at all times hereinafter mentioned the actions of **CITY**, **NYPD** and all defendants herein as described above were carried out in a reckless, deliberate, willful, wanton, malicious and grossly negligent manner.

58. That by reason of the foregoing, Plaintiff **DARNELL HOLMES** has been damaged in an amount that exceeds the jurisdictional limits of all lower trial courts of this state.

**AS AND FOR A FIFTH CAUSE OF ACTION ON
BEHALF OF PLAINTIFF DARNELL HOLMES**

59. Plaintiff **DARNELL HOLMES** repeats, reiterates and realleges each and every allegation contained in paragraphs numbered 1-58 with the same force and effect as if fully set forth at length herein.

60. In arresting Plaintiff **DARNELL HOLMES**, police officers including but not limited to **MOBAREK**, **BRAY**, **JOHN DOE ONE**, and **JOHN DOE TWO**, acting in their

capacity as agents, servants and employees of **CITY** and **NYPD**, were motivated by an ulterior purpose to do harm, without justification or economic or social excuse.

61. In arresting Plaintiff **DARNELL HOLMES**, police officers including but not limited to **MOBAREK, BRAY, JOHN DOE ONE**, and **JOHN DOE TWO**, acting in their capacity as agents, servants and employees of **CITY** and **NYPD**, sought either a detriment to Plaintiff **DARNELL HOLMES** or a collateral advantage to the **CITY** and **NYPD** that is outside the legitimate ends of effectuating an arrest.

62. As a result of the abuse of process by defendants herein, Plaintiff **DARNELL HOLMES** sustained multiple injuries including but not limited to loss of liberty, emotional distress, humiliation, loss of enjoyment of life, and fear and intimidation for his safety.

63. That at all times hereinafter mentioned the actions of **CITY, NYPD** and all defendants herein as described above were carried out in a reckless, deliberate, willful, wanton, malicious and grossly negligent manner.

64. That by reason of the foregoing, Plaintiff **DARNELL HOLMES** has been damaged in an amount that exceeds the jurisdictional limits of all lower trial courts of this state.

**AS AND FOR A SIXTH CAUSE OF ACTION ON
BEHALF OF PLAINTIFF DARNELL HOLMES**

65. Plaintiff **DARNELL HOLMES** repeats, reiterates and realleges each and every allegation contained in paragraphs numbered 1 – 64 with the same force and effect as if fully set forth at length herein.

66. At all times mentioned herein and above, defendants **CITY** and **NYPD** employed **MOBAREK, BRAY, JOHN DOE ONE**, and **JOHN DOE TWO** as police officers and named defendants were acting under color of law, to wit: the statutes, ordinances and regulations, policies and customs and usage of the State of New York and/or City of New York.

67. Plaintiff **DARNELL HOLMES** is and at all times relevant herein, a citizen of the United States and a resident of Bronx County in the State of New York and brings this cause of action pursuant to 42 United States Code, Section 1983 and 42 United States Code, Section 1988.

68. That, on or about October 28th, 2020, defendants **CITY, NYPD, MOBAREK, BRAY, JOHN DOE ONE**, and **JOHN DOE TWO**, without probable cause, reasonable cause or legal justification and while effectuating the seizure of plaintiff **DARNELL HOLMES**, did search, seize, assault and commit a battery and grab the Plaintiff **DARNELL HOLMES** without a court authorized arrest warrant or search warrant and defendants did physically seize Plaintiff **DARNELL HOLMES** during the arrest process in an unlawful and excessive manner. Plaintiff **DARNELL HOLMES** was falsely arrested, unlawfully imprisoned and strip searched and as a result of defendants' conduct maliciously prosecuted without the defendants possessing probable cause, reasonable cause or legal justification to do so.

69. The above actions of defendants **CITY, NYPD, MOBAREK, BRAY, JOHN DOE ONE**, and **JOHN DOE TWO**, being deprived of the following rights under the United States Constitution: a) Freedom from assault to his person pursuant to the Fourth and Fourteenth Amendments to the United States Constitution; b) Freedom from battery to his person pursuant to the Fourth and Fourteenth Amendments to the United States Constitution; c) Freedom from illegal search and seizure pursuant to the Fourth and Fourteenth Amendments to the United States Constitution ; d) Freedom from false arrest and imprisonment pursuant to the Fourth and Fourteenth Amendments to the United States Constitution e) Freedom from malicious prosecution pursuant to the Fourth and Fourteenth Amendments to the United States Constitution; f) Freedom from the use of excessive force during the arrest process pursuant to the

Fourth and Fourteenth Amendments to the United States Constitution; g) The right to Due Process of Law pursuant to the Fourteenth Amendment to the United States Constitution; h) The right to a fair trial pursuant to the Sixth and Fourteenth Amendments to the United States Constitution.

70. In addition to the above, defendants **CITY** and **NYPD** have as a matter of policy, custom and practice and with deliberate indifference failed to adequately train, monitor, supervise, discipline, sanction or otherwise direct its police officers, including the officers involved in this case and any and all unnamed officers involved in the unlawful seizure and arrest of plaintiff, regarding the protection of the constitutional rights of citizens.

71. Defendants **CITY**, **NYPD**, **MOBAREK**, **BRAY**, **JOHN DOE ONE**, and **JOHN DOE TWO**, subjected Plaintiff **DARNELL HOLMES** to such deprivation in a malicious, reckless, deliberate, intentional, grossly negligent and with a callous disregard of Plaintiff **DARNELL HOLMES'** rights and with deliberate indifference to those rights under the Fourth, Fifth, Sixth, Fourteenth and all other related Amendments to the United States Constitution.

72. The direct and proximate result of the defendants **CITY**, **NYPD**, **MOBAREK**, **BRAY**, **JOHN DOE ONE**, and **JOHN DOE TWO** acts are that Plaintiff **DARNELL HOLMES** suffered severe and permanent injuries, loss of liberty and companionship, forced to endure pain and suffering, emotional distress and severe and significant damage to standing and reputation in the community.

73. That by reason of the foregoing, Plaintiff **DARNELL HOLMES** has been damaged in an amount that exceeds the jurisdictional limits of all lower trial courts of this state.

WHEREFORE, the Plaintiff **DARNELL HOLMES** demands judgment against the defendants on the First Cause of Action through the Sixth Cause of Action in a sum that exceeds

the jurisdictional limits of all lower trial courts of this state for each cause of action, all together with attorney's fees, punitive damages and the costs and disbursements of this action.

Dated: Maspeth, New York

October 27, 2021

Raymond Elvis Gazer
Raymond Elvis Gazer, Esq.
Law Offices of Raymond Elvis Gazer
64-04 Hull Avenue
Maspeth, New York 11378
(917)848-0527

TO: GEORGIA M. PESTANA, ESQ.
Corporation Counsel of City Of New York 100 Church Street
New York, New York 10007

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New York City Police Department
1 Police Plaza
New York, New York 10038

POLICE OFFICER JOHN DOE TWO
New York City Police Department
1 Police Plaza
New York, New York 10038

VERIFICATION

RAYMOND ELVIS GAZER, ESQ., attorney and counselor at law, duly admitted to practice before the courts of this state, deposes and says: that he is the attorney for the plaintiff in the above-entitled action; that he has read the foregoing Summons & Complaint, and that the same is true to his own knowledge, except as to those matters stated therein to be alleged on information and belief, and as to those matters, he believes them to be true.

This verification is made by deponent instead of the said plaintiff because the plaintiff resides outside the County of Queens where deponent maintains his offices.


Raymond Elvis Gazer, Esq.

**SUPREME COURT OF THE CITY OF NEW YORK
COUNTY OF BRONX**

DARNELL HOLMES,

Plaintiff,

-against-

**CITY OF NEW YORK, NEW YORK CITY
POLICE DEPARTMENT, POLICE OFFICER
MARKMOBAREK, DETECTIVE LAWRENCE
BRAY, and JOHN DOE POLICE OFFICERS
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Index No.

Defendants.

SUMMONS & VERIFIED COMPLAINT

RAYMOND E. GAZER, ESQ.
Attorney for Defendant
**64-04 Hull Avenue
Maspeth, New York 11378**
